



Placement and Residential Licensing Unit

P.O. Box 1437, Slot S140, Little Rock, AR 72203-1437

P: 501.682.8590 F: 501.683.6060 TDD: 501.682.1550

Notice of Serious Incident

Case Number: 027951

Date of Incident: 3/1/2025

Date Received: 3/3/2025

Facility Name: The Centers for Youth and Families Monticello

Facility Number: 159

Incident Type: Licensing

Report Description: On 3/1/2025, client [REDACTED] was upset and began hitting the window in his bedroom repeatedly. Staff, [REDACTED], entered the bedroom and attempted to perform a CPI restraint, but was unsuccessful. It was reported that the client and the staff were involved in a physical altercation. The nurse on duty, [REDACTED], intervened and separated the client and staff. The staff was immediately suspended and sent home, pending termination this week. The client is a [REDACTED] and the guardian was notified.

Interim Action Narrative: Staff immediately suspended pending certain termination.

[REDACTED] **Narrative:**

Licensing Narrative: 3/3/25-Reviewed for licensing concerns. [REDACTED] [REDACTED] contacted for further information. Phone call made to [REDACTED] of Centers Monticello. Nursing note for client sent to licensing. There is no video footage of incident. Visit scheduled for 3/11/25. 3/4/25-Nurse who witnessed incident provided a witness statement which indicated that staff was unprofessional, used an inappropriate hold and used a disciplinary action that did result in physical injury and threat of bodily harm. Facility will be cited 109.1g, 905.4g and 905.9. This witness statement and staff termination papers sent to licensing. 3/10/25-Received notification that staff involved in complaint has

completed all background checks and they are approved. 3/11/25-Facility visited and cited 109.1g, 905.4g and 905.9. Licensing complaint founded. 4/21/2025, facility provided documentation that was uploaded to the case. The case has been closed as founded by licensing. Approved by Program Coordinator. Case complete.



Division of Child Care & Early Childhood Education

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521 Visit Compliance Report

Licensee: The Centers for Youth and Families Monticello

Facility Number: 159

Licensee Address: 936 JORDAN DRIVE
MONTICELLO AR 71657

Licensing Specialist: Clayton DeBoer

Person In Charge: Bernetta Lowe

Record Visit Date: 3/11/2025

Home Visit Date: 3/11/2025

Purpose of Visit: Complaint Visit

Regulations Out of Compliance:

Regulations Needing Technical Assistance:

Regulation Not Applicable:

Regulations Not Correctable:

Regulation Number: 100.109.1.g

Regulation Description: Unprofessional conduct in the practice of child welfare activities shall include, but not limited to the following:

Finding Description: Staff was unprofessional, used an inappropriate hold and used a disciplinary action that could result in physical injury and threat of bodily harm.

Action Due Date: 2025-03-01

Action Due Description: Staff was immediately suspended following incident and terminated 3/4/25.

Comply Date:

Sub-Regulation Level 1 Description: Engaging in behavior that could be viewed as sexual, dangerous, exploitative, or physically harmful to children.

Regulation Number: 900.905.4.g

Regulation Description: The following actions shall not be used, including as discipline:

Finding Description: Staff was unprofessional, used an inappropriate hold and used a disciplinary action that could result in physical injury and threat of bodily harm.

Action Due Date: 2025-03-01

Action Due Description: Staff was immediately suspended following altercation and terminated 3/4/25.

Comply Date:

Sub-Regulation Level 1 Description: Physical injury or threat of bodily harm;

Regulation Number: 900.905.9

Regulation Description: Physical restraints shall be performed using minimal force and time necessary. Physical restraint means the application of physical force without the use of any device, for the purposes of restraining the free movement of a resident's body. Briefly holding a child without undue force in order to calm or comfort, or holding a hand to safely escort a child from one area to another, is not considered a physical restraint.

Finding Description: Staff was unprofessional, used an inappropriate hold and used a disciplinary action that could result in physical injury and threat of bodily harm.

Action Due Date: 2025-03-01

Action Due Description: Staff was immediately suspended following altercation and terminated 3/4/25.

Comply Date:

Narrative:

3/11/25-Facility visited in response to licensing complaint that staff was in an altercation with resident. Nurse who witnessed incident provided a witness statement which indicated that staff was unprofessional, used an inappropriate hold and used a disciplinary action that could result in physical injury and threat of bodily harm. Facility cited 109.1g, 905.4g and 905.9. This witness statement and staff termination papers sent to licensing.

Staff file reviewed. Staff involved in altercation hire date is 12/16/24. Handle With Care certificate of completion 12/19/24 reviewed. Staff has no prior complaints or disciplinary actions in his file. Licensing confirmed that all background checks were completed and approved.

Licensing complaint is founded.

******* Pursuant to A.C.A. § 9-24-406(e)(3-4): If you believe that the Department's notice of noncompliance is in error, you may ask for reconsideration. The request for reconsideration must be in writing and delivered to the Department by certified mail within twenty (20) business days of receipt of the notice of noncompliance. The request must specify the parts of the notice that are alleged to be in error, explain why you believe those parts are in error, and include documentation to support the**

allegation of error. Once received the Department shall issue a decision on your request within twenty (20) days after receipt of the request.

Provider Comments:

CCL Staff Signature :

Date: 3/11/2025



Provider Signature :

Date: 3/11/2025

